

[TO BE PUBLISHED IN THE GAZETTE OF INDIA, EXTRAORDINARY, PART II, SECTION 3, SUB-SECTION (i)]

GOVERNMENT OF INDIA
MINISTRY OF FINANCE
(DEPARTMENT OF REVENUE)

NOTIFICATION
No. 19/2024-Customs (ADD)

New Delhi, the 22nd October, 2024

G.S.R. ...(E).- Whereas, in the matter of “Thermoplastic Polyurethane (TPU)” (hereinafter referred to as the subject goods), falling under tariff item 3909 50 00 of the First Schedule to the Customs Tariff Act, 1975 (51 of 1975) (hereinafter referred to as the Customs Tariff Act), originating in, or exported from China PR (hereinafter referred to as the subject country) and imported into India, the designated authority in its final findings *vide* notification F. No. 6/23/2023-DGTR, dated the 6th August, 2024, published in the Gazette of India, Extraordinary, Part I, Section 1, dated the 6th August, 2024, has, *inter alia*, come to the conclusion that-

- (i) the product under consideration has been exported to India at a price below normal value, thus resulting in dumping;
- (ii) the dumping of the subject goods has resulted in material injury to the domestic industry in India;
- (iii) the landed price of imports is below the level of selling price of the domestic industry and is undercutting the prices of the domestic industry,

and has recommended imposition of anti-dumping duty on imports of the subject goods, originating in, or exported from the subject country and imported into India, in order to remove injury to the domestic industry.

Now, therefore, in exercise of the powers conferred by sub-sections (1) and (5) of section 9A of the Customs Tariff Act read with rules 18 and 20 of the Customs Tariff (Identification, Assessment and Collection of Anti-dumping Duty on Dumped Articles and for Determination of Injury) Rules, 1995, the Central Government, after considering the aforesaid final findings of the designated authority, hereby imposes on the subject goods, the description of which is specified in column (3) of the Table below, falling under the tariff item of the First Schedule to the Customs Tariff Act as specified in the corresponding entry in column (2), originating in the countries as specified in the corresponding entry in column (4), exported from the countries as specified in the corresponding entry in column (5), produced by the producers as specified in the corresponding entry in column (6), and imported into India, an anti-dumping duty at the rate equal to the amount as specified in the corresponding entry in column (7), in the currency as specified in the corresponding entry in column (9) and as per unit of measurement as specified in the corresponding entry in column (8) of the said Table, namely :-

TABLE

Sl. No.	Tariff item	Description	Country of Origin	Country of Export	Producer	Amount	Unit	Currency
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)
1.	3909 50 00	Thermoplastic Polyurethane (TPU)*	China PR	Any country including China PR	BASF Polyurethane Specialties China Co., Ltd	Nil	Kg	USD

2.	-do-	-do-	China PR	Any country including China PR	Zhejiang Huaфон TPU Co., Ltd	1.15	Kg	USD
3.	-do-	-do-	China PR	Any country including China PR	Miraell Chemicals Co. Ltd.	0.93	Kg	USD
4.	-do-	-do-	China PR	Any Country including China PR	Any producer other than S.No. (1), (2) and (3)	1.58	Kg	USD
5.	-do-	-do-	Any country other than China PR	China PR	Any	1.58	Kg	USD

Note: The customs classification is only indicative and not a binding on the scope of the product under consideration.

** The product scope covers polyester-based TPU as well as polyether-based TPU, and polycaprolactone-based TPU is specifically excluded from the scope of product.*

2. The anti-dumping duty imposed under this notification shall be levied for a period of five years (unless revoked, superseded or amended earlier) from the date of publication of this notification in the Official Gazette and shall be payable in Indian currency.

Explanation.- For the purposes of this notification, rate of exchange applicable for the purpose of calculation of such anti-dumping duty shall be the rate which is specified in the notification of the Government of India, in the Ministry of Finance (Department of Revenue), issued from time to time, in exercise of the powers conferred by section 14 of the Customs Act, 1962 (52 of 1962), and the relevant date for the determination of the rate of exchange shall be the date of presentation of the bill of entry under section 46 of the said Act.

[F. No. CBIC-190354/155/2024-TRU Section-CBEC]

(Amreeta Titus)
Deputy Secretary to the Government of India